ADMINISTRATIVE REVIEW TRIBUNAL

BRISBANE REGISTRY

Tribunal Numbers:	**2023/3361, 2023/3363 and 2023/4494**
First Applicant:	**VIDA REID**
Second Applicant:	**SIMON REID**
Third Applicant:	**FORWARD FOCUSED GROUP PTY LTD**
Respondent:	**COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION**

FIRST APPLICANT'S RESPONSE AND PROPOSED ADDITIONAL DIRECTIONS

in response to the Respondent's Proposed Minute of Order dated 14 August 2026

1. The First Applicant, Ms Vida Reid, has read the Second Applicant's Proposed Minute of Order. She adopts the orders proposed there insofar as they concern the procedure common to the three applications, including the determination of the Respondent's application under section 70, the requirement that the Respondent state the decision it will ask the Tribunal to make and its position on Sunflower Care Services Pty Ltd v Commissioner of the NDIS Quality and Safeguards Commission (No 2) [2025] FCA 1442, the witness notice, and the fixing of the hearing estimate after those matters are known.

2. In addition, the First Applicant seeks the following orders in her own application (2023/3361).

3. **Interpreter.** Pursuant to section 68 of the Administrative Review Tribunal Act 2024 (Cth), an interpreter in Bahasa Indonesia be provided at the Tribunal's arrangement for the directions hearing and all subsequent case events, and the suitability of those arrangements be confirmed before the matters are set down for hearing. The First Applicant recorded this request before the decision of 31 July 2026, and it is noted at paragraphs 2(e) and 41 of that decision.

4. **Allocation schedule.** A schedule corresponding to the schedule sought by the Second Applicant be provided in respect of the First Applicant, stating for each claim relied upon against her: the participant, the date or period and amount, the entity that submitted the claim, the source document, the act or omission of the First Applicant personally on which the Respondent relies, the evidence relied upon, and whether that material was before the original decision-maker or the internal reviewer.

5. **Privilege protocol.** Until further order: (a) the Respondent give advance written notice of any question, topic or category of document sought from the First Applicant that may engage the privilege against self-incrimination or penalty privilege; (b) any claim of privilege be determined by the Tribunal before the First Applicant is required to answer or produce; and (c) any hearing of such a claim occur in private, with such orders under section 70 as are appropriate. This order is sought because the criminal charges against the First Applicant were dismissed for want of prosecution on 23 February 2024 with the

prosecution stating an intention to recharge, and her position must be managed question by question rather than by a general stay.

6. **Separate question.** The First Applicant renews her request, recorded at paragraph 24(c) of the decision of 31 July 2026 and not yet determined, that the question whether the decision of 21 April 2023 lawfully varied the statutory basis of her banning order from section 73ZN(2)(a)(i) to section 73ZN(2)(a)(iii) of the National Disability Insurance Scheme Act 2013 (Cth) be determined as a separate question, and asks that it be dealt with together with the separate question proposed by the Second Applicant.

7. The First Applicant otherwise does not oppose the Respondent's proposed orders 1 to 4, subject to the sequencing sought by the Second Applicant.

Dated: _____ 2026

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Vida Reid

First Applicant, in person